TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
APRIL 24, 2023
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Elliott Barrow, Aaron Butner, Molly Hall, Julian Hopkins, Megan Stevens (entered at 6:16 pm).
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments and no correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-13-23, 1428 Hindman Avenue, TMS #532-10-00-201. Request for relief from the strict application of §156.303(Table) and §156.140(D)(5) to allow a 4-foot 5-inch encroachment into the front setback and improvements upon the existing**

nonconforming structure; where the value of said improvements exceeds 50% of the property's assessed value. *Deferred from March 2023 meeting.*

- Ms. Hall recused herself due to a conflict of interest.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Sandeep Dhand and Ms. Erin Dhand reviewed the request with the Board.

- There being no public comment, Mr. Wood moved to Board questions.

- *Ms. Stevens entered at this time (6:16 pm).*

- Mr. Wood closed public comment.

- *Mr. Butner moved for approval of the variance requests based on the findings this meets the criteria as there are extraordinary conditions as the home was built before 1979 and setbacks were established prior to the zoning code, the conditions are not applicable to other properties in vicinity, denial would unreasonably restrict use as existing front porch renders opening the door difficult and would not be a detriment to the neighborhood. Mr. Hopkins seconded the motion. All in favor with Mr. Wood, Ms. Hall, and Ms. Stevens abstaining.*

2. **Case V-14-23, 391 Egypt Road, The Jones Center, TMS #556-00-00-361. Request for relief from the strict application of §156.102(A)(1) to allow the construction of two 60-feet tall light poles. The ordinance limits the height of all structures to 35-feet for this parcel.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Ken Rhye, Town Engineer, reviewed the request with the Board.

- There being no comment, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that it meets the criteria, it would improve safety and it would provide better lighting, and the height is needed for better lighting. Ms. Stevens seconded the motion. All in favor.*

3. Case V-15-23, 1427 Hindman Avenue, TMS #532-10-00-169. Request for relief from the strict application of 156.225(C) to allow the removal of a 31'' Live Oak tree and a 44'' Live Oak Tree; and relief from the strict application 156.303(Table) for a 2' 10'' encroachment into the rear setback and a 3' 11'' encroachment into the side setback.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jeremy Kruska, architect, reviewed the request with the Board.

- Mr. Alex Brenner, 1430 Pocahontas, stated that the property is dilapidated, and the structure needs to be demolished. He stated that he is in favor of the demolition and the proposed new structure.

- Mr. Mike Tinkey, 208 Venning, asked that other remedies be considered rather than the removal of the historic trees on the property. He suggested that the proposed structure is significantly larger than the existing home and suggested that there could be other options to preserve the historic trees and still provide a home for the family. He suggested that the request does not meet the criteria as there are no extraordinary conditions.

- Mr. Sandeep Dhand, 1428 Hindman, stated that he lives across the street from the property and has reviewed the plans. He suggested that the home is not out of character with the neighborhood and that the trees are competing with other trees on the property.

- Ms. Erin Dhand, 1428 Hindman, suggested that the home is dilapidated, and the property overgrown. She suggested that the proposed home would enhance the character of the neighborhood.

- There being no further comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial of the request for removal of historic trees based on the findings that there are other lots with historic trees on the property, denial would not prohibit use of the property, there are no alternative plans considered to preserve the trees or use the existing footprint, owner was aware of the number of historic trees on the property at the time the property was purchased, if approved there would be a detriment to the public interest by removal of historic trees. Mr. Hopkins seconded the motion. Motion passed on a 4 to 3 vote with Mr. Barrow, Mr. Hopkins, Ms. Hall, and Mr. Wood in favor; Mr. Butner, Mr. Branch, and Ms. Stevens opposed.*

- *Mr. Barrow moved for denial of the setback variance as the denial of the request for a variance to remove the historic trees has rendered the setback variance moot. Mr. Branch seconded the motion. Motion passed on a 5 to 2 vote with Mr. Barrow, Mr. Branch, Mr. Hopkins, Ms. Hall, Mr. Wood in favor; Mr. Butner and Ms. Stevens opposed.*

H. Approval of Final Orders

The Board signed final orders.

- Mr. Wood left at this time (7:09 pm). Ms. Stevens took over as chair of the meeting.

There being no further business, the meeting adjourned at 7:11 pm.

Submitted by,
L. Lynes
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